

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD, *Respondent and Third-Party Complainant*

v.

SAMSUNG ELECTRONICS COMPANY, LTD.; SAMSUNG SDS
GLOBAL SCL ASIA PACIFIC PTE LTD.; AND SAMSUNG
ELECTRONICS LOGITECH COMPANY, LIMITED,
Third-Party Respondents.

DOCKET NO. 24-16

Served: February 26, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge.*

ORDER ON FIFTH EXTENSION AND MODIFICATION OF DISCOVERY SCHEDULE

The most recent scheduling order issued on September 12, 2025. Order on Fourth Joint Motion for Extension of Time. Shortly after the issuance of the fourth amendment to the scheduling order, the Commission extended the time for the filing of the initial decision in this proceeding from September 29, 2025, to March 30, 2026. The parties filed a fifth joint motion to enlarge the discovery period on November 25, 2025, but that motion was inadvertently not forwarded to the undersigned for consideration. Despite no amendment to the September 2025 scheduling order, the parties were following the discovery dates they proposed in November 2025, at least until January 16, 2026, when COSCO failed to meet the completion of document production and because of that, neither party started noticing depositions.¹ On February 9, 2026, COSCO filed a status report, and on February 11, 2026, SEA filed a motion to compel, and both documents referenced the November 25, 2025, motion to enlarge the discovery period. After a status conference on February 13, 2026, to address the issues raised in the November 2025 and February 2026 filings, the parties filed a Joint Motion to Extend and Modify the Discovery

¹ The September 12, 2025, scheduling order called for the completion of document production and the noticing of fact depositions beginning on October 17, 2025.

Schedule.² The parties move to extend the completion of document production from October 17, 2025 (the date in the September 2025 Order), to April 16, 2026; completion of fact depositions from December 12, 2025 (the date in the September 2025 Order), to August 20, 2026, and completion of discovery from January 9, 2026 (the date in the September 2025 Order), to December 4, 2026. For comparison, the November 2025 joint motion that was not acted on proposed completing document production January 16, 2026, fact depositions March 16, 2026, and closing discovery July 1, 2026.

As good cause for extending not only the completion of document production by 60 days from the date of the filing of the joint motion, but also the completion of fact depositions by six months, and the completion of discovery by nearly ten months, as well as modifying the schedule to add other deadlines, the parties state that the case is complex and it is time-consuming to collect, process, review, compile, and then produce the documents for the 22,000 shipments at issue. After production, the parties need sufficient time to review the records produced, and then prepare for depositions of up to 20 witnesses each.³ Some of those witnesses are located outside the United States, but the parties do not allege how many foreign country depositions they intend to take or whether they have discussed other ways of taking them more expeditiously, such as by some remote means. 46 C.F.R. § 502.143(b)(4).

The parties also rely on *Samsung Electronics America, Inc. v. HMM Co., Ltd. f/k/s Hyundai Merchant Marine Co., Ltd.*, Dkt. No. 24-23 (ALJ Nov. 21, 2025), where the ALJ found good cause to extend discovery well beyond the period proscribed in the Commission's rules because that case, "like many of the Commission's recent cases, implicates tens of thousands of shipments and so necessarily involves large discovery volumes." Second Amended Scheduling Order at 1. There, fact depositions began January 16, 2026, and discovery is set to close on June 23, 2026. *Id.* at 2. I take notice that the case cited by the parties as supporting good cause for the fifth extension of discovery in this proceeding due to the complexity of reviewing records for 22,000 charges, has over 96,000 charges at issue, was filed two months after this proceeding, and is much further along in discovery despite being even more complex. The discovery schedule in *SEA v. HMM* does not support the protracted discovery schedule sought by the parties here.

While there is good cause to extend the schedule to complete document production, to allow the parties time to prepare for and conduct depositions, and to add more detailed deadlines for expert reports and depositions, the length of the extensions proposed by the parties are not warranted. Accordingly, the parties' joint motion to extend the schedule is **GRANTED IN PART** and **DENIED IN PART**.

² The parties are again requested to sequentially number similar motions, as recommended in the Initial Order. Initial Order at 4.

³ This number includes "party witnesses, former party witnesses, and third-party witness depositions." Joint Motion to Extend and Modify the Discovery Schedule ("5th Joint Motion") at 3. It is unclear what the parties mean by "former party witnesses" as opposed to "former employees" and how many of those they are counting in that number.

The schedule is extended and modified as follows, and now includes a meeting to discuss the obligations of the parties prior to the prehearing conference, and the date of the prehearing conference. The parties are **ORDERED** to follow this amended schedule:

March 6, 2026 ⁴	Joint Status Report
April 16, 2026	Document Production Completed, Fact Witness Depositions Begin, Joint Status Report due
June 22, 2026	Complete Fact Depositions, Experts identified, Joint Status Report Due
July 23, 2026	Expert Reports Due, Rebuttal Experts identified
August 21, 2026	Expert Rebuttal Reports Due, Joint Status Report Due
September 11, 2026	Complete Expert Depositions
September 11, 2026	Discovery Closes
September 30, 2026	Meeting to discuss joint prehearing statement must be held by this date, exhibits must be exchanged by this date
October 21, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due
October 28, 2026	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 a.m.

In addition to motions to dismiss the third-party complaint and COSCO's counterclaim, motions to quash have been filed by several third-party and non-party entities. Recently, SEA and COSCO have also filed motions to compel. In the interest of providing a schedule for the parties to follow while these multiple outstanding motions are decided in subsequent orders, this order does not decide the issues raised in those motions. Moreover, in the interest of minimizing further delay, no further discovery motions should be filed in this matter until the outstanding motions are decided. In the event of an urgent need to file a motion prior to the issuance of orders deciding the outstanding motions, the parties are instructed to first send an email to me at Judges@FMC.gov, copying the other parties, stating what issues they are unable to resolve in a cooperative manner, and requesting a status conference.

⁴ The parties proposed filing a Joint Status Report on March 2, 2026, which is only a few business days from the date of this order. To allow more time for the parties to confer and hopefully resolve some of their outstanding discovery issues, I have moved the next Joint Status Report to the end of the same week proposed.

The parties are urged to stipulate to facts that are not in contention, consider remote depositions, and otherwise narrow the issues to increase efficiency and prevent further delay.



Linda S. Harris Crovella
Administrative Law Judge